

TENTATIVE RULINGS**April 14, 2025**

#	Case Name	Tentative
101	2023-01316826 Bertrand vs. Chapman University	1. Demurrer to Amended Complaint 2. Case Management Conference Moving party has been dismissed. Motion off calendar. Case Management Conference continued to April 28, 2025 at 10:00 a.m. in Department C27. Clerk to give notice.
102	2023-01343154 Chavez vs. Kuntz	Motion for Preference Plaintiff Karin Chavez as Trustee of the Anneliese Narath Family Trust udt 11/24/09's motion for trial preference is granted. Code Civ. Proc. § 36 states in pertinent part (emphasis added): (a) A <u>party</u> to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. * * * (c) Unless the court otherwise orders: (1) A party may file and serve a motion for preference supported by a declaration of the moving party that all essential parties have been served with process or have appeared. (2) At any time during the pendency of the action, a party who reaches 70 years of age may file and serve a motion for preference. Plaintiff moves for trial preference due to the age and health of her mother, Anneliese Narath. But, Anneliese Narath is not a party to the action. Thus, Plaintiff is not entitled to preference under Code Civ. Proc. § 36 (a). Plaintiff, here is "Plaintiff Karin Chavez as Trustee of the Anneliese Narath Family Trust udt 11/24/09." Karin Chavez submits a declaration in support of the motion, stating as follows: 1. I am the adult daughter of Anneliese Narath, and Trustee of the Anneliese Narath Revocable Trust, udt 11/24/2009. I am the plaintiff in the above-entitled matter, pursuant to my capacity as Trustee of the aforementioned trust. My mother resides with me at my Murrieta, California residence and I am her full-time caregiver. 2. My mother is 84 years old and in frail condition. Presently her heart condition is stable, however, she does have periods when her condition becomes life threatening and raises substantial medical doubt of her survival beyond six months. 3. My mother has a substantial interest in this case as she is the current and sole beneficiary of the aforementioned trust. This lawsuit seeks to recover over

		\$400,000.00 from the Defendant which arose out of a sale of real property. The funds being sued upon are necessary for her continuing care and support. Code Civ. Proc. § 36 (e) provides: Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference. Given that Anneliese Narath is 84 years of age, and is the sole beneficiary of the Anneliese Narath Revocable Trust, utd 11/24/2009, of which Plaintiff Karin Chavez is Trustee, the Court exercises its discretion and finds that the interests of justice will be served by granting preference. The Court sets a Trial Setting Conference on April 21, 2025 at 10:00 a.m. in Department C27 for the setting of a trial date. Counsel for Plaintiff and Defendant are ordered to appear either in person or remotely. The Clerk is ordered to give notice.
103	2025-01453005 H. vs. Ovation Fertility	Motion to Appear Pro Hac Vice The unopposed verified application by Daniel Campbell (“Counsel”) of the law offices of McDermott Will & Emery LLP for an Order permitting him to appear as counsel pro hac vice in this action on behalf of Defendant US Fertility, LLC is granted. Counsel substantially complied with Rule 9.40. Counsel shall give notice.
104	2021-01217921 Jeyaprakash vs. New Skin and Body Aesthetics, Inc.	Motion for Summary Judgment and/or Adjudication The Court grants Defendant Suwan Cheong’s Motion for Summary Judgment/Adjudication as to the first cause of action in Plaintiff Tharini Jeyaprakash’s Second Amended Complaint for negligence. <u>Evidentiary Objections</u> The Court overrules Defendant’s objection nos. 1 through 16. <u>Request for Judicial Notice</u> Plaintiff filed an untimely request for judicial notice, to which Defendant filed an Opposition. The request for judicial notice is denied as untimely. (CCP §437c(b)(2).) Further, even if it were considered, it does not change the ruling. (See <i>Dover v. Sadowinski</i> (1983) 147 Cal.Ap.3d 113, 117-118, plaintiff knew that Defendant was one of several doctors who treated his deceased wife, but did not move to join him as a “Doe” until 19 months after the original complaint (for wrongful death) was filed; Plaintiff admitted “We knew he was involved, but we had no idea, Your Honor, how deeply as a negligent individual, he was involved.” Leave to amend was properly denied because “actual knowledge” does not require that plaintiff have known each and every detail of the defendant's involvement.) <u>Legal Standard</u> “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (<i>Ibid.</i>) “A prima